

Heera Lal v. State of U.P. & Others

Allahabad High Court · Division Bench · 28 January 2009 · 2009 SCC OnLine All 83 · Civil Misc. Writ Petition No. 4897 of 2009
· **Writ petition dismissed**

HEADNOTE

In the recovery of electricity dues, the recovery proceeding is in the nature of execution and the executing authority (the Tehsildar acting on a citation) is confined to execution, discharge or satisfaction of the 'decree' — here the electricity authority's demand/assessment — and cannot vary or override it. A consumer who objects to the underlying demand must approach the authority that raised it (the electricity authority under the Electricity Act) or prefer an appeal, not raise the objection before the executing Tehsildar; variation of the 'decree' and its execution cannot run simultaneously. The petitioner, who filed his objection only before the Tehsildar and refused to approach the electricity authority despite the Court's endeavour, and who annexed the demand notice he claimed never to have received without explaining how he obtained it, had not come with clean hands; the writ was dismissed.

HOLDING-UNITS

INTERPLAY · CPC::47

Executing authority cannot vary the underlying demand; objection must go to the assessing authority

QUESTION

Can a consumer challenge the correctness of an electricity demand before the executing Tehsildar in recovery proceedings, or must he approach the electricity authority?

HOLDING

Recovery is akin to execution; the executing authority (Tehsildar) is confined to the execution, discharge or satisfaction of the demand ('decree') and cannot modify, set aside or vary it. An objection that seeks to vary the demand must be taken before the authority that passed it (the electricity authority) or by appeal, not before the executing Tehsildar; variation and execution cannot proceed simultaneously. ¶ (order)

LIMITING FACTS

Petitioner filed his objection only before the Tehsildar, declined to approach the electricity authority, and produced a copy of the demand notice he claimed never to have received without explaining how he obtained it — not clean hands.

PRINCIPLE TAGS

recovery-objection-goes-to-assessing-authority-not-executing-tehsildar An objection to the correctness of an electricity demand lies before the assessing/electricity authority (or on appeal), not before the executing Tehsildar, who is confined to execution and cannot vary the demand. Lead authorities: *Chandra Kishore Jha v. Mahabir Prasad*. ¶ (order)

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Chandra Kishore Jha v. Mahabir Prasad</i> JT 1999 (7) SC 256 Supreme Court	Where a statute provides for a thing to be done in a particular manner, it must be done in that manner and no other.	Proposition accepted, but held to support relegating the objection to the electricity authority, not the Tehsildar. ¶ (order)	Petitioner	Referred
<i>Seth Banarsi Dass (dead) by LRs v. District Magistrate and Collector, Meerut</i> (1996) 2 SCC 689 Supreme Court	Recovery proceedings are equivalent to execution proceedings under the CPC; an auction sale without deciding objections is a material irregularity vitiating the sale.	Cited by the petitioner; the Court held the executing authority is confined to the decree and cannot decide objections that vary it. ¶ (order)	Petitioner	Referred
<i>Smt. Chandrawati v. U.P. State Electricity Board</i> 1986 All LJ 1451	Where no notice of demand was admittedly served, the consumer is entitled to a mandamus restraining	Distinguished as factually different — there the non-service	Petitioner	Distinguished

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
Allahabad High Court (Division Bench)	recovery under the demand and recovery certificates.	was admitted, whereas here there was no such admission. ¶ (order)		

SCJ-170 · Heera Lal v. State of U.P. & Others · 2009 SCC OnLine All 83 · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.